

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

MARIE CAREW D/B/A/ HOLIDAY SHIPPING, *Complainant*

v.

MAERSK LINE A/S & JOHN DOES, *Respondents*.

DOCKET NO. 20-17

Served: June 9, 2021

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER ON COMPLAINANT’S REQUEST FOR DISCOVERY

Complainant Marie Carew d/b/a Holiday Shipping (“Holiday Shipping”) alleges that Respondent Maersk Line A/S (“Maersk”), violated section 41102(c) of the Shipping Act and Commission Rule 545.4(d). Maersk moved for a judgement on the pleadings, which was denied. Maersk was instructed to file its response to the complaint by April 28, 2021, and the parties were instructed to file a second joint status report with proposed schedule by May 10, 2021.

Maersk filed its answer to the complaint and on May 11, 2021, sent an email stating that Holiday Shipping had failed to respond to efforts to communicate with it in order to prepare a joint status report. On May 13, 2021, a scheduling order was issued, *inter alia*, setting a deadline of May 28, 2021, for the parties to submit any discovery requests, and June 28, 2021, for the parties to respond to discovery requests. On May 27, 2021, counsel for Complainant filed a motion seeking to withdraw as counsel. The request was denied without prejudice on June 1, 2021.

On June 3, 2021, a “Letter to the Court” was received by email attachment from Holiday Shipping, seeking an order requiring Maersk to respond to six interrogatories Holiday Shipping had sent to Maersk on June 2, 2021. Holiday Shipping states that it seeks the order because Maersk informed it that “it would not participate in discovery and respond to the interrogatories.” Letter to the Court at 1. On the same day, an email was received from Maersk, opposing Holiday Shipping’s letter request, and from Holiday Shipping, replying to Maersk’s opposition.

Holiday Shipping asserts in its letter:

Complainant limits her interrogatories to information and documents that Respondent and its subsidiary maintain in the course of business. After a series of efforts that span international boundaries, Complainant has found that there are differences in business protocols and legal environments between Nigeria and the United States. Per Maersk’s protocol in Nigeria, a Consignee collects and pays an

invoice and obtains a *delivery order* from Maersk. The Consignee's agent, in turn, presents the delivery order to the Nigeria Ports Authority (NPA) to get the final and actual release of the consignment. Maersk has simply turned away the Consignees that Complainant represents, refusing to issue them their invoices and release the *delivery order*.

Notwithstanding, Respondent maintains before this Commission that the Consignees' problems are with the NPA and beyond Maersk in Nigeria. The Consignees disagree with Maersk's assertion, as such statement is contrary to each of their experiences. Maersk needs to introduce any *delivery order* that the company issued to any of the Consignees with the dates it issued the delivery order.

Letter to the Court at 1-2. Complainant states that although the discovery request in question is five days late, it is tailored to the specific issue remaining in this case and contends that the responses are essential to the resolution of this case. Complainant notes that the schedule for this proceeding authorizes discovery up to June 28, 2021. Reply at 1.

Responding to Complainant's Letter, Maersk points out that the May 13, 2021, Scheduling Order "made it abundantly clear that no further failures to adhere to the schedule would be tolerated," and opines that "those directives and the integrity of the Commission's rulings would thus be plainly undermined were HOLIDAY's request to now be entertained." Response at 1. Maersk further asserts:

Maersk has already attempted to uncover and disclose all documents and information pertinent to Holiday's claims. We might add that Maersk has done so even though we have received nothing from Holiday to substantiate the allegations in the Complaint, and even though Holiday has failed to even interpose an answer to Maersk's Counter-Claim. As to HOLIDAY's latest assertion that some form of release is required of MAERSK before the NPA will turn over the vehicles to the consignees, we have repeatedly responded to [Complainant's counsel] that Maersk accomplished delivery of the cargo to the NPA in the normal custom and practice of the port, is unaware of the delivery order procedure of which he speaks, and, having disavowed any interest in the vehicles several times over, would, in any event, gladly sign off on any such form [counsel] might care to provide if MAERSK could finally be done with this matter free and clear. A copy of correspondence in this regard is herewith attached. As the parties have previously advised Your Honor, the NPA, not MAERSK, operates and controls the port facilities at Lagos. We do not, therefore, see any need for further discovery responses on the part of Maersk.

Response at 1. Maersk argues that Holiday's discovery request is "especially unfair and unwarranted" in light of the fact that Maersk "refrained from issuing its own demands to Holiday only in reliance upon the understanding that Holiday felt the same way. That understanding appeared to have been reconfirmed by Holiday's election to not serve discovery demands by May 28, 2021, as required." Response at 1.

Letter motions and email responses are generally not permitted because they lack the formality required under the Commission's Rules for motions. However, these filings will be accepted in order to prevent further delays and increased costs to the parties. In addition, the initial order required that a motion to compel "set forth verbatim the interrogatory or request." Initial Order at 3. Not only did the letter not set forth the request, the request is not attached. Therefore, the specific discovery requests at issue are not in the record and cannot be evaluated. The parties are reminded that they must follow Commission requirements.

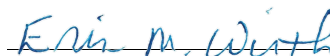
Although the deadline to submit discovery requests was May 28, 2021, discovery was not scheduled to close until June 28, 2021. Moreover, it is preferable to decide cases based on the merits. Therefore, limited discovery from both parties will be permitted as outlined below. In addition, if any party wishes to serve additional discovery requests they may submit their discovery requests to the undersigned who will review them and if permitted, an order will be issued directing a response to the request.

It appears that the parties have received conflicting information from their contacts in Nigeria regarding the process for obtaining shipments to Nigeria. The discovery requested appeared designed to better understand that issue, which may be helpful in resolving this proceeding. Clearing any misunderstanding as to what is required to release the shipments in question may help the parties resolve their dispute.

Accordingly, the parties shall submit an affidavit and appendix of supporting evidence regarding the release of the containers at issue by July 8, 2021. Holiday Shipping is directed to submit evidence corroborating the statements in its motion to compel that the shipments are being detained by the NPA pending a delivery order from Maersk. Similarly, Maersk is directed to submit any evidence corroborating its statement that no delivery order is required from Maersk in order for the shipments to be released to the consignees.

The affidavit by Complainant should detail efforts to obtain the pertinent containers, the results of such efforts, communications with Maersk staff and the NPA, and the status of the containers, if known. The affidavit by Maersk should detail Maersk's efforts to release the pertinent containers, communications between Maersk staff and the consignees, and the status of the containers in question. The supporting evidence should include any bills of lading for the pertinent shipments not previously provided by the parties, the delivery orders for the containers, and any other documents pertinent to the release, or inability to take delivery of the containers. The parties may include any other documents that are relevant to the issues in contention. All filings, including the appendix, must have unique page numbers. The parties should also indicate by July 8, 2021, if additional discovery is requested and shall jointly propose an amended schedule for briefing in this proceeding.

For the reasons discussed above, it is hereby **ORDERED** that Complainant's request for discovery be **GRANTED IN PART AND DENIED IN PART**. The parties shall file an affidavit and appendix of supporting evidence regarding the release of the containers at issue, requests for any additional discovery, and a proposed amended schedule by July 8, 2021.


Erin M. Wirth
Chief Administrative Law Judge